# RECORDING SCRIPT · EP. 3 LOVING V. VIRGINIA

ON CAMERA · 5 PIECES · 330 WORDS | VOICE-OVER · 20 LINES · 1077 WORDS | ABOUT 9 MINUTES READ

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1. **On camera first** (pages 2 onward), same setup as Miranda: the blue Background effect, chest-up, the same light. Then the voice-over with the same mic as eps. 1 and 2.
2. **Slate:** before each piece, say its ID as printed (“sixteen”), wait a beat, then go.
3. **Flubs:** stop, pause, and start that *sentence* again. Each sentence is on its own line so you can restart at any of them; the mistakes get cut.
4. **Another try:** say the ID again plus “take two.” The last take is used unless you say otherwise.
5. **Room tone:** 5 seconds of silence at the start of the voice-over session.
6. **Quotations** are read exactly as printed; they go on screen word for word.
7. **Breaks:** stop whenever you like. Several files across several sessions are fine; tick the boxes as you go.

# ON CAMERA

## S03

COLD OPEN · ~27 S

On camera

I’m Eric Hoffman.

I’m a lawyer.

You know this case by its name, and you probably think you know the story: a brave couple, a dramatic trial, a Supreme Court that struck down racist laws.

Most of that is wrong.

There was no trial.

They pleaded guilty.

And Virginia’s argument wasn’t that the races were unequal.

It was that the law was fair.

Let’s open the file.

The turn is “Most of that is wrong.” Then four short facts. A breath before “Let’s open the file.”

## S10

ACT TWO: THE PLEA · ~18 S

On camera

Why plead guilty?

Because they were guilty.

They had left the state to marry and come back.

Those were the only facts the statute cared about, and nobody disputed them.

A trial would have proved what everyone already knew.

The only question was the sentence.

Matter-of-fact. This is the lawyer’s answer, not a defense of the law.

## S16

ACT THREE: THE JUDGE · ~22 S

On camera

I want to be careful here.

That paragraph is famous because the Supreme Court quoted it, and it sounds like the whole case.

It isn’t.

Bazile’s opinion was a trial judge’s opinion.

The legal fight was about something colder: a theory of equality that had been the law of the United States for eighty-two years.

A correction, not a lecture. Slow on “something colder.”

## S20

ACT FOUR: THE ARGUMENT · ~23 S

On camera

That second argument is the one that should bother you, because it is the shape of every argument like it.

Not “these people are inferior,” but “we are protecting the children.”

It sounds reasonable.

The Court’s answer was that it did not matter how reasonable it sounded, because the law drew its line by race and nothing else.

The one place you lean in. Keep it level all the same.

## S26

OUTRO · ~42 S

On camera

Three things to take from the file.

One: the crime was crossing a state line.

The marriage was legal where they made it.

Two: the state’s case was not that the races were unequal.

It was that the law was fair because it hurt everyone the same, and the Supreme Court had agreed with that for eighty years.

Loving is the case that ended it.

Three: the line about the freedom to marry is the reason this case is still argued about.

It was the foundation of Obergefell in 2015.

What that means going forward is a question for another file.

This one is closed.

Three numbered points. A beat after each number. Fresh take at “One:”, “Two:” or “Three:” if you need it.

# VOICE-OVER

## S01

COLD OPEN · ~13 S

3D: a bedroom door at night, a flashlight beam under it

June 1958.

A bricklayer and his wife drive home to Caroline County, Virginia, from their wedding in Washington.

Five weeks later, before dawn, the sheriff and two deputies come through their bedroom door.

Plain and exact. The picture does the drama.

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## S02

COLD OPEN · ~8 S

3D: the framed certificate on the wall, the beam finds it

She points at the marriage certificate on the wall.

“I’m his wife.”

The sheriff says, “Not here you’re not.”

Read both quotations flat. Don’t act the sheriff.

S05 ACT ONE: THE CRIME · ~34 S

Card: § 20-58, the text

Here is the crime.

Not being married.

Leaving the state to get married, and coming back.

Section 20-58 of the Virginia Code: if a white person and a colored person go out of the state to marry, and return to live together as husband and wife, they are punished as if the marriage had happened in Virginia.

Section 20-59 makes it a felony.

One to five years in the penitentiary.

And section 20-57 says the marriage itself is void.

No divorce needed.

It never existed.

The statute is the villain. Let each section number land.

Card: 1691 · 1924 · 1958 on a timeline

Virginia had banned marriages like this since the colonial era.

The version on the books in 1958 was the Racial Integrity Act of 1924.

It defined “white” so tightly that a single exception had to be written in, for descendants of Pocahontas.

## S07

ACT ONE: THE CRIME · ~26 S

3D: Central Point, a frame house, lights on downstairs

Richard Loving was twenty-four, white, a construction worker.

Mildred Jeter was eighteen.

The court record calls her “a colored person.”

Later in life she said she was Indian, Rappahannock.

They had both grown up in Central Point, a crossroads where the color line had always been blurry.

They drove to Washington on June 2, 1958, married, and came home to live downstairs at her parents’ house.

Say it: Rappahannock: rap-uh-HAN-uck

## S08

ACT ONE: THE CRIME · ~18 S

3D: the Bowling Green jail, a cell door

The warrants were sworn on July 11.

The arrest came in the middle of the night.

They were taken to the jail at Bowling Green.

Richard was out the next day on a thousand-dollar bond.

Mildred stayed several more days, and was released to her father.

## S09

ACT TWO: THE PLEA · ~10 S

3D: the Caroline County courthouse, empty bench

In October a grand jury indicted them.

On January 6, 1959, they stood in front of Judge Leon Bazile.

There was no trial.

They pleaded guilty.

Say it: Bazile: check before the session (family or Caroline County sources)

Card: the sentence, verbatim

One year each in jail.

Suspended for twenty-five years, on one condition.

Read it.

“That both accused leave Caroline County and the state of Virginia at once and do not return together or at the same time to said county and state for a period of twenty-five years.”

Banishment.

They could come back to Virginia.

Just never together.

Slow down for the quotation; it is the sentence, word for word.

## S12

ACT TWO: THE PLEA · ~16 S

Card: $36.29

They paid thirty-six dollars and twenty-nine cents each in court costs and moved to Washington, to a cousin’s house on Neal Street.

They had three children.

Mildred went home to Central Point to give birth, alone, because the sentence allowed it.

## S13

ACT TWO: THE PLEA · ~27 S



3D: a letter on a kitchen table, an envelope addressed to the Attorney General

Five years went by.

In 1963 Mildred Loving wrote a letter to the Attorney General of the United States, Robert Kennedy.

She said later she wasn’t in anything to do with civil rights.

“We were trying to get back to Virginia.

That was our goal, to get back home.”

Kennedy’s office sent her to the ACLU.

The ACLU sent her a young lawyer in Alexandria named Bernard Cohen.

S14 ACT THREE: THE JUDGE · ~20 S

Card: Motion to Vacate · Nov 6, 1963

Cohen’s problem was that the case was over.

They had pleaded guilty four years earlier and never appealed.

So he went back to the same judge with a motion to vacate the sentence, and asked Judge Bazile to hold his own ruling unconstitutional.

The judge took fourteen months to answer.

## S15

ACT THREE: THE JUDGE · ~26 S

Card: the Bazile quotation, verbatim, attributed, Jan 22, 1965

On January 22, 1965, he denied the motion.

This is what he wrote.

“Almighty God created the races white, black, yellow, malay and red, and he placed them on separate continents.

And but for the interference with his arrangement there would be no cause for such marriages.

The fact that he separated the races shows that he did not intend for the races to mix.”

Read the judge’s words exactly, with no color. Pause before “This is what he wrote.”

S17 ACT THREE: THE JUDGE · ~42 S

Card: Pace v. Alabama (1883) · “equal application”

In 1883 the Supreme Court upheld an Alabama law that punished interracial couples more harshly than anyone else.

The reasoning: the law punished the white partner and the Black partner exactly the same, so nobody was being treated unequally.

Equal application.

Virginia’s highest court had used the same logic in 1955 to uphold these statutes, and in March 1966 it used it again on the Lovings.

It affirmed the convictions.

It did strike one thing: the banishment.

Twenty-five years of exile, the court said, was “unreasonable.”

So it sent the case back to be resentenced.

Which, by the way, under the statute, meant the penitentiary.

Long one. Fresh take at any sentence. Dry on “Which, by the way.”

## S18

ACT FOUR: THE ARGUMENT · ~16 S

3D: the Supreme Court courtroom, empty, the lectern

April 10, 1967.

The Lovings did not come to Washington for the argument.

They stayed on a farm in King and Queen County and avoided reporters.

Their lawyers split the case: Philip Hirschkop argued equal protection, Bernard Cohen argued due process.

Say it: Hirschkop: HIRSH-kop

## S19

ACT FOUR: THE ARGUMENT · ~30 S

Card: Virginia’s argument, two lines

Then Virginia.

Assistant Attorney General R. D. McIlwaine made two arguments, and you should hear them as he made them.

First: the law applies equally to both races, so it is not discrimination.

Second: even if the Court looked past that, the legislature had a legitimate reason.

He cited studies.

Mixed marriages, he said, carried “sociological and psychological evils” for the families and especially the children, and the state was entitled to protect them.

Fair to Virginia. You are stating his argument as he made it.

Say it: McIlwaine: check before the session

S21 ACT FOUR: THE ARGUMENT · ~18 S

Card: the Richard Loving line, attributed to Cohen, Apr 10, 1967 (verified)

Cohen ended with something his client had said to him.

“No one can articulate it better than Richard Loving when he said to me, Mr. Cohen, tell the Court I love my wife and it is just unfair that I can’t live with her in Virginia.”

Quiet. The quotation is Cohen quoting Richard.

Card: June 12, 1967 · 9 to 0

June 12, 1967.

Nine to nothing.

Chief Justice Warren wrote it.

First, equal application: rejected.

The Court said the mere equal application of a law containing racial classifications does not take it outside the Fourteenth Amendment.

The eighty-four-year-old theory was dead.

Second, the purpose.

The Court found “no legitimate overriding purpose independent of invidious racial discrimination,” and called the statutes “measures designed to maintain White Supremacy.”

Those are the Court’s words.

“Nine to nothing” is a beat on its own.

## S23

THE HOLDING · ~23 S

Card: the due process line, verbatim

And then the sentence this case is remembered for.

“The freedom to marry has long been recognized as one of the vital personal rights essential to the orderly pursuit of happiness by free men.”

The freedom to marry a person of another race, the Court said, “resides with the individual and cannot be infringed by the State.”

The line the episode is built to. Unhurried.

## S24

THE HOLDING · ~13 S

Card/3D: map, sixteen states lit, going dark

Sixteen states still had these laws that morning.

By nightfall none of them were enforceable.

Alabama left the words in its constitution anyway, until the voters took them out in the year 2000.

## S25 THE HOLDING · ~20 S

3D: Central Point, the house, dusk

Mildred Loving gave one short news conference at her lawyers' office.

"I feel free now."

Someone burned a cross in her mother's yard.

Richard built them a house in Central Point.

He died there eight years later, when a drunk driver hit his car.

She lived in that house until 2008.

Gentle. The only lines about them as people.

END OF RECORDING SCRIPT · THE HOFFMAN FILES · EP. 3